

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.37308 of 2016

Usman Ashraf **V/S** *Inspector General of Police etc*

<i>S.No.of order / Proceedings</i>	<i>Date of order /Proceedings</i>	<i>Order with signatures of Judge, and that of parties or counsel, where necessary.</i>
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08.12.2016	Ch. Majid Hussain Suleman, Advocate for the Petitioner. Mr. Muhammad Iftikhar ur Rasheed, AAG.
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By way of instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”), the Petitioner has sought direction against the Respondents to issue medical docket for medical examination required for joining duties as constable/driver.

2. Briefly, the learned counsel for the Petitioner contended that the Respondents advertised posts of constable/driver in December, 2015 against which the Petitioner applied and after fulfilling all the requirements, has been declared as successful candidate in respect of which merit list was also issued. Learned counsel further submitted that despite the Petitioner being successful candidate has neither been issued medical docket, nor recruited as constable/driver. Hence, the instant petition. Furthermore, the petitioner has specifically mentioned in the petition that he had valid driving license.

3. Report and parawise comment were submitted on behalf of the Respondents vehemently denying the claim of the Petitioner.

4. Learned Law Officer submitted that the Petitioner does not fulfill the requirement for the post of Driver/Constable in Special Protection Unit (SPU) i.e. 2 years' experience after grant of at least Light Transport Vehicle (LTV) license, as such, the department has rightly withheld his recruitment.

5. From the perusal of report and para-wise comments filed on behalf of the Respondents, it reveals that requirement for the post of Driver/Constable in Special Protection Unit (SPU) is at least 2 years' experience after grant of LTV license, as required under the Standing Order No. 06/2015 issued by the Inspector General of Police Punjab under Article 10(3) of the Police Order, 2002. The comments filed by the Respondents and the advertisement also depict that candidates should possess at least LTV license with 2 years' experience whereas according to the Respondents, the Petitioner has driving experience of 11 months and 16 days after issuance of Heavy Traffic Vehicle (HTV) license, hence he did not fulfill the requirements for the said post and was, therefore, not recruited.

6. The Court has given its anxious consideration to the contentions of the learned counsels of the parties and has perused the record. From the perusal of the Driving License annexed by the Petitioner and the Respondent No.1, Inspector General of Police, it is apparent that Driving License No. 15988 of HTV type for m/cycle and m/car was issued to the Petitioner on 4th August 2009 which is valid till 17th November 2019. This driving license has been filed with writ petition (Annex-H) and same has also been filed by the Respondents with report and parawise comments hence, the contention of the Respondent No. 1 that the license was issued to the Petitioner on 25.03.2015, is not true and is contradictory to

the record annexed by the Petitioner and the Respondents too. The Court has pondered over the argument of the Respondents and it is established that the Petitioner has a valid HTV license from 4th August 2009, and the Petitioner is well within the limit of two years' experience. The Respondents in report and parawise comments has wrongly mentioned that the Petitioner was issued HTV License No.15988 on 25.03.2015 which in fact was issued on 04.08.2009.

7. Another aspect of the matter which cannot be lost sight is that, according to Clause 6(b)(ii) of the Standing Order No. 6/2015 and advertisement of post, “[*applicants*] must be in possession of valid LTV Driving License with at least 2 years’ experience.” Importantly, the Provincial Motor Vehicles Ordinance, 1965 (the “Vehicles Ordinance”) was enacted to bring in field the uniform law pertaining to motor vehicles in the Province and underlying purpose of the statute was to regulate motor vehicles and their running on roads. Further, Section 2(13) of the Vehicles Ordinance defines the ‘heavy transport vehicle’ (HTV) as “*a transport vehicle the registered axle weight of which exceeds 10,600 pounds avoirdupois, or the registered laden weight of which exceed 14,500 pounds avoirdupois*”. Similarly, Section 2(18) of the Vehicles Ordinance defines the ‘light transport vehicle’ (LTV) as “*any public service vehicle other than a motor cab, or any goods vehicle other than a heavy transport vehicle or a delivery van*”.

8. Furthermore, the conditions highlighted above may further be elaborated under Subsection 7 and 8 of Section 7 of the Vehicles Ordinance, which states as follows:

“... (7) *The test of competence to drive shall be carried out in a vehicle of the class to which the*

application refers, and for the purposes of Part I of the test—

(a) a person who passes the test in driving a heavy transport vehicle shall be deemed also to have passed the test in driving any motor vehicle other than a motor cycle or a road-roller;

(b) a person who passes the test in driving a light transport vehicle shall be deemed also to have passed the test in driving a motor car or a motor cab or a delivery van.”

(8) No license shall be issued to any applicant to drive a heavy transport vehicle unless he has held for a period of not less than three years immediately preceding the making of the application an effective license to drive a motor vehicle other than a motor cycle, an invalid carriage or a road-roller. ...”

It is manifest that it shall be deemed that a person having a HTV driving license, must have also passed test in driving any motor vehicle other than a motor cycle or a road roller. However, on the other hand, a person having a LTV driving license must have passed the test in driving a motor car, or a motor cab or a delivery van only. In other words, it is implied that if a HTV driving license is issued to any person, it shall be deemed that the applicant has also license for driving LTV. Similarly, HTV driving license is only issued to the applicant who has an effective license to drive a motor vehicle other than a motor cycle, an invalid carriage or road roller, for not less than three (3) years.

9. In the case in hand, the Petitioner has a valid HTV driving license for driving m/car and m/cycle, which meets the requirements of the advertisement of post that the applicant must be in possession of valid LTV Driving License. Essentially, the LTV driving license is issued for driving a motor car, or a motor cab or a delivery van only. Furthermore, since the Petitioner has been issued a HTV driving license on 04.08.2009, which is not denied by the Respondents, it shall be deemed that he has also an

effective license to drive a motor vehicle other than a motor cycle, an invalid carriage or road roller, for three years. Hence, prima facie, in my view, the Petitioner is eligible to drive any vehicle which is required by the advertisement of above-said post, being LTV.

10. It is equally important to note that in the case of “Pir IMRAN SAJID and others v. Managing Director/General Manager (Manager Finance) Telephone Industries Of Pakistan and others”, (2015 SCMR 1257), it has held at para 11 that:

“11. It hardly needs to be emphasized that the whole edifice of governance of the society has its genesis in the Constitution and laws aimed at to establish an order, inter alia, ensuring the provisions of socio-economic justice, so that the people may have guarantee and sense of being treated in accordance with law that they are not being deprived of their due rights. Provision of Article 4 embodies the concept of equality before law and equal protection of law and save citizens from arbitrary/discriminatory law and actions by the Governmental authorities. Article 5(2) commands that everybody is bound to obey the command of the constitution. Every public functionary is supposed to function in good faith, honestly and within the precincts of its power so that persons concerned should be treated in accordance with law as guaranteed by Article 4 of the Constitution. It would include principles of natural justice, procedural fairness and procedural propriety. The action which is mala fide or colourable is not regarded as action in accordance with law. While discharging official functions, efforts should be made to ensure that no one is prevented from earning his livelihood because of unfair and discriminatory act on their part.

12. It is now well laid down that the object of good governance cannot be achieved by exercising discretionary powers unreasonably or arbitrarily and without application of mind but objective can be achieved by following the rules of justness, fairness, and openness in consonance with the command of the Constitution enshrined in different Articles

including Articles 4 and 25. The obligation to act fairly on the part of the administrative authority has been evolved to ensure the rule of law and to prevent failure of the justice.”

11. The importance of the above principle that the Respondents being a statutory body, is expected to deal with applicants for all the posts fairly, justly, honestly and conduct its all actions transparently and in accordance with the applicable laws, rules and terms and conditions so that the concerned person should be treated in accordance with law without any discrimination, have also been highlighted in various judgments by the superior courts in “Zulfiqar Ali v. The State” (1998 SCMR 1016); “Muhammad Akram Solangi and 17 others v. District Coordination Officer, Khairpur and 3 others”, (2013 PLC (C.S.) 121 [Sindh High Court], “Dr. Bashir Ahmed and others v. Province Of Sindh through Chief Secretary and others”(2016 PLC (C.S) 179) [Sindh], ”Mumtaz Oad and 2 others v. Sindh Public Service Commission through Secretary and 2 others” (2015 CLC 1605) [Sindh]; “Ignees Maria and another v. District Coordination Officer, District Bahawalnagar and 2 others” (2012 PLC (C.S.) 772) [Lahore High Court], “Syed Muhammad Akram Shah v. Azad Government Of The State Of Jammu And Kashmir And Another” (1985 PLC (C. S.) 711 [Azad J & K (H. C.)].

12. In view of above, this Court suffice to allow this petition to the extent that the Petitioner is entitled to issuance of docket for medical examination required for joining on the post of Constable/Driver. Further, this Court, under inherent power bestowed by the Constitution of the Islamic Republic of Pakistan, 1973 has ample power to direct or compel a department to not go beyond their Rules and Regulations and terms and conditions made

thereunder. Hence, the Department is directed to issue the docket for medical examination required for joining the post of constable/driver.

(JAWAD HASSAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

*Usman**